



Senate

General Assembly

File No. 228

February Session, 2026

Substitute Senate Bill No. 387

Senate, March 30, 2026

The Committee on Government Administration and Elections reported through SEN. FLEXER of the 29th Dist., Chairperson of the Committee on the part of the Senate, that the substitute bill ought to pass.

AN ACT CONCERNING ELECTION ADMINISTRATION OVERSIGHT.

Be it enacted by the Senate and House of Representatives in General Assembly convened:

- 1 Section 1. (NEW) (*Effective from passage*) (a) There is established a
- 2 Municipal Election Accountability Board, which shall be within the
- 3 office of the Secretary of the State for administrative purposes only, for
- 4 the purposes of (1) reviewing the administration of elections, primaries
- 5 and referenda, including the conduct of early voting, absentee voting
- 6 and same-day election registration, and the duties of election officials
- 7 under title 9 of the general statutes, in municipalities in this state
- 8 whenever such municipalities are referred to the board for such review,
- 9 (2) overseeing the administration of elections in such municipalities
- 10 where necessary, and (3) establishing procedural safeguards for the
- 11 effective conduct of such elections, primaries and referenda in such
- 12 municipalities. Nothing in this section shall be construed to (A) affect
- 13 the powers and duties of the Secretary of the State or the State Elections
- 14 Enforcement Commission under title 9 of the general statutes, including

15 chapter 151a of the general statutes, (B) preclude any person from
16 seeking additional remedies under title 9 of the general statutes,
17 including under chapter 151a of the general statutes, or (C) otherwise
18 affect chapter 151a of the general statutes.

19 (b) (1) The Municipal Election Accountability Board shall be
20 comprised of: (A) The Secretary of the State, or the Secretary's designee,
21 who shall be the chairperson of the board; (B) the executive director of
22 the State Elections Enforcement Commission, or the executive director's
23 designee; (C) nine members appointed by the Secretary of the State, with
24 the advice and consent of the General Assembly, as follows: (i) One
25 member who shall be admitted to the practice of law in this state and
26 who has expertise in election law; (ii) two members who shall be
27 moderators certified under section 9-229 of the general statutes and
28 enrolled in different political parties, to be selected from a list of five
29 recommendations from each major party, as defined in section 9-372 of
30 the general statutes, such list to be provided by an association
31 representing the interests of registrars of voters in the state; (iii) two
32 members who shall be registrars of voters and enrolled in different
33 political parties, to be selected from a list of five recommendations from
34 each major party, such list to be provided by an association representing
35 the interests of registrars of voters in the state; (iv) two members who
36 shall be town clerks and enrolled in different political parties, to be
37 selected from a list of five recommendations from each major party,
38 such list to be provided by an association representing the interests of
39 town clerks in the state; and (v) two members who shall be chief elected
40 officials of municipalities and enrolled in different political parties, to be
41 selected from a list of five recommendations from each major party,
42 such list to be provided jointly by a state-wide organization of municipal
43 leaders and an organization that advocates for the interests of small
44 towns in the state; and (D) one member appointed by each of the four
45 legislative leaders, as defined in section 4-9d of the general statutes, who
46 shall have expertise in election administration or election law.
47 Appointments under subparagraphs (C) and (D) of this subdivision
48 shall be made so that no single municipality is represented by more than
49 one member.

50 (2) Members described in subparagraphs (C) and (D) of subdivision
51 (1) of this subsection shall serve for a term of four years and until a
52 successor is appointed, and initial appointments of such members shall
53 be made not later than August 1, 2026. Members described in said
54 subparagraphs shall recuse themselves from participating in any
55 proceeding of the board on any matter in which a conflict exists due to
56 such member or the immediate family of such member being involved
57 in any matter before said board, including, but not limited to, a matter
58 concerning a town appearing before said board that such member
59 represents on said board. Any vacancy shall be filled by the appointing
60 authority for the remainder of the applicable member's unexpired term.
61 The members of the board shall serve without compensation, but shall
62 be reimbursed for expenses incurred in the performance of their duties.
63 For the purposes of this subdivision, "immediate family" means a
64 dependent relative who resides in the member's household or any
65 spouse, child, parent or sibling of the member.

66 (c) (1) Beginning on the second Tuesday of January, 2027, and
67 monthly thereafter, the Municipal Election Accountability Board shall
68 hold a regularly scheduled meeting.

69 (2) All regularly scheduled meetings shall be noticed on the Internet
70 web site of the office of the Secretary of the State. In the event of any
71 review hearing or preliminary review to be held under section 2 of this
72 act, information regarding such hearing or review shall be added to
73 such notice not later than forty-eight hours prior to any such meeting.

74 (3) A vacancy on the board shall not impair the right of the remaining
75 members to exercise all powers of the board, except that a majority of
76 the total membership of the board shall constitute a quorum for the
77 transaction of business.

78 Sec. 2. (NEW) (*Effective January 1, 2027*) (a) (1) Whenever the Secretary
79 of the State or the State Elections Enforcement Commission is of the
80 opinion that a reasonable likelihood of irregularity or impropriety in the
81 administration of any election, primary or referendum in a municipality
82 exists, based on any formal or informal complaint received by the

83 Secretary or the commission from an individual, the Secretary or the
84 commission, as applicable, may refer such municipality to the
85 Municipal Election Accountability Board for a review hearing on such
86 municipality's procedures related to the conduct of any such election,
87 primary or referendum. Any such referral shall be accompanied by
88 supporting evidence, including, but not limited to, affidavits, written or
89 electronic correspondence or documented findings from an
90 investigation.

91 (2) Whenever a judge of the Superior Court is of the opinion that a
92 reasonable likelihood of irregularity or impropriety in the
93 administration of any election, primary or referendum in a municipality
94 exists, based on a matter before such court involving such municipality's
95 alleged violation of any provision of title 9 of the general statutes, such
96 judge may refer such municipality to the Municipal Election
97 Accountability Board for a review hearing on such municipality's
98 procedures related to the conduct of any such election, primary or
99 referendum. Any such referral shall be accompanied by supporting
100 evidence, including, but not limited to, any record developed during a
101 judicial proceeding.

102 (3) (A) Whenever a municipal clerk, registrar of voters or moderator
103 observes any act or omission that may present an impediment to the
104 timely and orderly administration of any duty required of a
105 municipality under title 9 of the general statutes, or (B) whenever the
106 chief executive officer of a municipality, based on a review of such
107 municipality's practices, identifies any such practice that may present
108 such an impediment, such municipal clerk, registrar of voters,
109 moderator or chief executive officer, as applicable, may refer such
110 municipality to the Municipal Election Accountability Board for a
111 review hearing on such municipality's procedures related to the conduct
112 of elections, primaries and referenda. Any such referral shall be
113 accompanied by supporting evidence, including, but not limited to,
114 affidavits, written or electronic correspondence, procedure manuals and
115 other guidance documents and logs of absentee ballot applications,
116 moderator's diaries or other contemporaneously-produced notes or

117 records.

118 (4) Whenever any citizen of the state has a good-faith belief that a
119 reasonable likelihood of irregularity or impropriety in the
120 administration of any election, primary or referendum in a municipality
121 exists, such citizen may file a report detailing such irregularity or
122 impropriety with the Municipal Election Accountability Board and
123 seeking a preliminary review of such municipality's procedures related
124 to the conduct of any such election, primary or referendum. Any such
125 report shall be accompanied by supporting evidence, including, but not
126 limited to, affidavits, written or electronic correspondence or
127 documented findings from an investigation. All submissions of such
128 supporting evidence shall be made under penalty of false statement.

129 (b) At the next regularly scheduled meeting of the Municipal Election
130 Accountability Board after the receipt of a citizen report under
131 subdivision (4) of subsection (a) of this section, the board shall hold a
132 preliminary review for the purpose of determining whether to hold a
133 review hearing under subsection (c) of this section. At such preliminary
134 review, the board shall vote to determine whether, if everything in the
135 citizen report is accurate, the reported municipality would be likely to
136 be designated for oversight in accordance with subsection (c) of this
137 section. In making such determination, the board shall consider (1) the
138 plausibility of the citizen report based on such report and supporting
139 evidence, (2) the nature and severity of the alleged irregularity or
140 impropriety, including whether any such irregularity or impropriety
141 would constitute a violation of the provisions of chapter 151 or 151a of
142 the general statutes, and (3) the frequency with which any such
143 irregularity or impropriety is alleged to have occurred in such reported
144 municipality. A preliminary review of a citizen report held under this
145 subsection shall not be considered a contested case under chapter 54 of
146 the general statutes.

147 (c) Immediately upon receipt of a referral under subdivisions (1) to
148 (3), inclusive, of subsection (a) of this section or an affirmative vote at a
149 preliminary review of a citizen report held under subsection (b) of this

150 section, the Municipal Election Accountability Board shall give notice of
151 such referral or citizen report to the referred municipality. Not later than
152 ten days after receipt of such notice, the referred municipality may
153 submit to the board a written response to such referral or citizen report.
154 Not later than forty-five days after receipt of such response or, if such
155 municipality does not submit such a written response, not later than
156 sixty days after the board gave notice of such referral or citizen report
157 to the referred municipality, the board shall hold a review hearing
158 during a regularly scheduled meeting of the board for the purpose of
159 presenting to such referred or reported municipality the evidence that
160 accompanied such referral or citizen report. The board may compel the
161 attendance of any person as a witness by subpoena issued by the board
162 and may compel the production for examination of any books and
163 papers that the board deems relevant to the matter in question. At such
164 review hearing, the chief executive officer, the corporation counsel or
165 any other duly authorized representative of such referred or reported
166 municipality shall have a right to respond to the evidence that
167 accompanied such referral or citizen report, including, but not limited
168 to, rebuttal of any fact alleged and confrontation of any witness. Not
169 later than the next regularly scheduled meeting after the review hearing,
170 the board shall vote to determine (1) whether to designate such referred
171 or reported municipality for oversight by the board in accordance with
172 the provisions of section 3 of this act, (2) if such oversight is deemed
173 necessary, the tier to which such municipality shall be designated, and
174 (3) if such oversight is deemed necessary, the length of time such
175 municipality shall be subject to such oversight. In making the
176 determination under subdivisions (1) to (3), inclusive, of this subsection,
177 the board shall consider: (A) The referred or reported municipality's
178 response, if any, to the evidence that accompanied such referral or
179 citizen report, (B) the nature and severity of the alleged irregularity or
180 impropriety, including whether any such irregularity or impropriety
181 constitutes a violation of the provisions of chapter 151 or 151a of the
182 general statutes, and (C) the frequency with which any such irregularity
183 or impropriety appears to have occurred in such referred or reported
184 municipality. The determination of the board under this subsection may

185 be appealed in accordance with the provisions of chapter 54 of the
186 general statutes. Any such appeal shall be privileged with respect to
187 assignment.

188 (d) The Municipal Election Accountability Board may refer to the
189 State Elections Enforcement Commission for further proceedings any
190 person relevant to a matter before the board concerning a referred or
191 reported municipality, in any case where the board believes such person
192 has violated any provision of the general statutes relating to any
193 election, primary or referendum.

194 Sec. 3. (NEW) (*Effective January 1, 2027*) A referred municipality
195 designated by the Municipal Election Accountability Board as a:

196 (1) Tier I municipality shall be subject to oversight by the board
197 consisting of (A) development by such municipality of a plan to mitigate
198 the concerns that warranted such designation by the board, which shall
199 be submitted to the board for approval and modification as required by
200 the board, (B) mandatory training of election officials in election
201 administration procedures and best practices, conducted by the office of
202 the Secretary of the State or by a certified moderator, town clerk or
203 registrar of voters, or a combination thereof, selected by the Secretary of
204 the State, and (C) distribution by said office to such election officials of
205 instruction or training manuals or other resources for promoting best
206 practices in election administration.

207 (2) Tier II municipality shall be subject to oversight by the board
208 consisting of (A) the measures provided under subdivision (1) of this
209 section for a Tier I municipality, and (B) regular contact with the
210 municipality to ensure (i) compliance with the developed mitigation
211 plan and timely achievement of the benchmarks set forth in such
212 mitigation plan, (ii) attendance of election officials at all mandatory
213 training, and (iii) distribution of manuals or resources in accordance
214 with the provisions of subparagraph (C) of subdivision (1) of this
215 section.

216 (3) Tier III municipality shall be subject to oversight by the board

217 consisting of (A) the measures provided under subdivision (2) of this
218 section for a Tier II municipality, and (B) an election monitor appointed
219 by the board (i) who shall be authorized to (I) conduct inspections,
220 inquiries and investigations related to any duty or responsibility under
221 title 9 of the general statutes to be carried out by any official of such
222 municipality or appointee of such official, (II) have access to all records,
223 data and material maintained by or available to any such official or
224 appointee, and (III) immediately report to the Secretary of the State any
225 irregularity or impropriety in the performance of any duty or
226 responsibility described in subparagraph (B)(i)(I) of this subdivision,
227 and (ii) who shall be provided, by such municipality, any office space,
228 supplies, equipment and services necessary to properly carry out such
229 election monitor's duties and responsibilities.

230 (4) Tier IV municipality shall be subject to oversight by the board
231 consisting of the complete administration by the board of any election,
232 primary or referendum in such municipality, and all procedures related
233 to the orderly conduct of any such election, primary or referendum,
234 notwithstanding the provisions of (A) titles 7 and 9 of the general
235 statutes, (B) any special act, and (C) any charter or home rule ordinance
236 adopted pursuant to chapter 99 of the general statutes.

237 Sec. 4. (NEW) (*Effective from passage*) Not later than January 1, 2027,
238 the Municipal Election Accountability Board shall adopt regulations, in
239 accordance with the provisions of chapter 54 of the general statutes, as
240 the board deems necessary to implement the provisions of sections 1 to
241 3, inclusive, of this act.

242 Sec. 5. Subdivision (1) of subsection (a) of section 9-7b of the 2026
243 supplement to the general statutes is repealed and the following is
244 substituted in lieu thereof (*Effective January 1, 2027*):

245 (1) To make investigations (A) on its own initiative, [or] (B) with
246 respect to statements filed with the commission by the Secretary of the
247 State, any town clerk or any registrar of voters, [or] (C) upon written
248 complaint under oath by any individual, or (D) upon referral from the
249 Municipal Election Accountability Board pursuant to subsection (d) of

250 section 2 of this act, with respect to alleged violations of any provision
251 of the general statutes relating to any election or referendum, any
252 primary held pursuant to section 9-423, 9-425 or 9-464 or any primary
253 held pursuant to a special act, and to hold hearings when the
254 commission deems necessary to investigate violations of any provisions
255 of the general statutes relating to any such election, primary or
256 referendum, and for the purpose of such hearings the commission may
257 administer oaths, examine witnesses and receive oral and documentary
258 evidence, and shall have the power to subpoena witnesses under
259 procedural rules the commission shall adopt, to compel their attendance
260 and to require the production for examination of any books and papers
261 which the commission deems relevant to any matter under investigation
262 or in question. Until the commission determines that it is necessary to
263 investigate a violation, commission members and staff shall keep
264 confidential any information concerning a complaint or preliminary
265 investigation, except upon request of the treasurer, deputy treasurer,
266 chairperson or candidate affiliated with a committee that is the subject
267 of the complaint or preliminary investigation. In connection with its
268 investigation of any alleged violation of any provision of chapter 145, or
269 of any provision of section 9-359 or section 9-359a, the commission shall
270 also have the power to subpoena any municipal clerk and to require the
271 production for examination of any absentee ballot, inner and outer
272 envelope from which any such ballot has been removed, depository
273 envelope containing any such ballot or inner or outer envelope as
274 provided in sections 9-150a and 9-150b and any other record, form or
275 document as provided in section 9-150b, in connection with the election,
276 primary or referendum to which the investigation relates. In case of a
277 refusal to comply with any subpoena issued pursuant to this subsection
278 or to testify with respect to any matter upon which that person may be
279 lawfully interrogated, the superior court for the judicial district of
280 Hartford, on application of the commission, may issue an order
281 requiring such person to comply with such subpoena and to testify;
282 failure to obey any such order of the court may be punished by the court
283 as a contempt thereof. In any matter under investigation which concerns
284 the operation or inspection of or outcome recorded on any voting

285 tabulator, the commission may issue an order to the registrars of voters
286 to impound such tabulator until the investigation is completed;

This act shall take effect as follows and shall amend the following sections:		
Section 1	<i>from passage</i>	New section
Sec. 2	<i>January 1, 2027</i>	New section
Sec. 3	<i>January 1, 2027</i>	New section
Sec. 4	<i>from passage</i>	New section
Sec. 5	<i>January 1, 2027</i>	9-7b(a)(1)

Statement of Legislative Commissioners:

The provisions of Section 1(b)(1)(C)(ii) to (v), inclusive, were rewritten for clarity; and in Section 2(a)(4), "correspondence and" was changed to "correspondence or" for consistency.

GAE *Joint Favorable Subst.*

The following Fiscal Impact Statement and Bill Analysis are prepared for the benefit of the members of the General Assembly, solely for purposes of information, summarization and explanation and do not represent the intent of the General Assembly or either chamber thereof for any purpose. In general, fiscal impacts are based upon a variety of informational sources, including the analyst's professional knowledge. Whenever applicable, agency data is consulted as part of the analysis, however final products do not necessarily reflect an assessment from any specific department.

OFA Fiscal Note

State Impact:

Agency Affected	Fund-Effect	FY 27 \$	FY 28 \$
Secretary of the State	GF - Cost	385,100	375,100
Secretary of the State	GF - Cost	See Below	See Below
State Comptroller - Fringe Benefits ¹	GF - Cost	157,000	157,000

Note: GF=General Fund

Municipal Impact:

Municipalities	Effect	FY 27 \$	FY 28 \$
Various Municipalities	Potential Cost	See Below	See Below

Explanation

The bill establishes the Municipal Election Accountability Board (MEAB) within the Office of the Secretary of the State (SOTS) and empowers the board to review misconduct and provide oversight. The bill results in a General Fund cost of approximately \$542,100 in FY 27 and \$532,100 annually thereafter, primarily to SOTS and a potential cost to municipalities that become subject to MEAB oversight.

The bill results in a cost of \$385,100 in FY 27 and \$375,100 annually thereafter for salary and other expenses² to SOTS and \$157,000 in fringe annually to support four staff members³ to facilitate the board as

¹The fringe benefit costs for most state employees are budgeted centrally in accounts administered by the Comptroller. The estimated active employee fringe benefit cost associated with most personnel changes is 41.82% of payroll in FY 27.

² Other expenses are expected to total \$10,000 in FY 27 only for the new staff's laptops and other equipment.

³ This includes an Executive Officer, Staff Attorney II, Elections Officer, and an Administrative Assistant.

outlined in the bill. The additional staff will provide analysis for the board and recommendations for municipalities under board oversight. There is an additional cost to SOTS, likely minimal, to reimburse the board members for reasonable expenses.

The bill additionally results in a potential cost to municipalities associated with the oversight of the board. MEAB is empowered to place municipalities under certain circumstances in one of four tiers of oversight. Each level of oversight prescribes different provisions which municipalities must comply. The exact cost would depend on the number of municipalities subject to board oversight, the level of oversight imposed, and resources required.

The Out Years

The annualized ongoing fiscal impact identified above would continue into the future, subject to inflation and oversight decisions of MEAB.

OLR Bill Analysis**sSB 387*****AN ACT CONCERNING ELECTION ADMINISTRATION OVERSIGHT.*****SUMMARY**

This bill establishes a 15-person Municipal Election Accountability Board to receive referrals of election administration violations from certain state entities, courts, election and municipal officials, and state citizens (such as early voting, absentee voting, and same-day election registration violations, as well as election official duties). The bill authorizes the board to (1) hold review hearings to determine if violations occurred; (2) if violations took place, order varying oversight levels for election administration and establish procedural safeguards, up to a full intervention; and (3) refer matters to the State Election Enforcement Commission (SEEC).

The bill places the board within the Secretary of the State's office for administrative purposes only and specifies that it does not affect (1) SEEC's or the secretary's existing election oversight authority; (2) the state's Voting Rights Act (VRA, Chapter 151a); and (3) anyone seeking alternative remedies state election law allows, including under the state VRA.

The board must adopt any regulations it deems necessary to implement the bill's provisions by January 1, 2027.

EFFECTIVE DATE: January 1, 2027, except the provisions establishing the board and requiring it to adopt regulations take effect upon passage.

BOARD OPERATIONS***Board Membership***

Under the bill, the board consists of 15 members. It includes the secretary of the state and SEEC's executive director, or their designees, and 13 appointed members as shown in the table below. The secretary of the state (or her designee) serves as the board's chairperson.

Table: Appointed Members

<i>Appointing Authority</i>	<i>Number</i>	<i>Qualification</i>
House speaker, senate president pro tempore, and house and senate minority leaders	One each	Election administration or election law experience
Secretary of the State	Nine	• One admitted to practice law in the state with election law expertise • Two certified moderators from different political parties and chosen from a list of recommendations from an organization representing registrars of voters' interests • Two registrars of voters from different political parties and chosen from a list of recommendations from an organization representing registrars of voters' interests • Two town clerks from different political parties and chosen from a list of recommendations from an organization representing town clerk interests • Two municipal chief elected officials of different political parties and from a list of joint recommendations from an organization that advocates for small town interests and a statewide organization of municipal leaders

Any lists an organization provides must have five members of each major party for the secretary to consider and her appointments are subject to legislative approval. Among all appointed members, a municipality may only be represented once on the board. The appointments are for four-year terms and until successors are appointed. Initial appointments must be made by August 1, 2026. Any vacancy must be filled by the appointing authority for the original member's remaining term.

Board Logistics

The bill requires the board to have monthly meetings starting on the second Tuesday of January in 2027. These meetings must be noticed on the secretary of the state's website, and any review hearing or preliminary review (see below) must be added to this notice at least 48 hours before the scheduled meeting. A majority of the total membership constitutes a quorum for transacting business.

Under the bill, appointed members must recuse themselves from participating in a board proceeding if they, a town they represent, or an immediate family member is involved in the matter. Immediate family includes a spouse, child, parent, or sibling, as well as any dependent relative living in the member's home.

The bill specifies that members are not compensated for serving on the board but can be reimbursed for expenses incurred in performing their duties. Further, a board vacancy does not impair the right of the remaining members to exercise the board's powers.

REFERRAL TO THE BOARD***Secretary of the State or SEEC***

The bill allows the secretary of the state or SEEC to refer a municipality to the board if either believes, based on any formal or informal complaints they receive, that there is a reasonable likelihood of irregularity or impropriety in municipal election administration (for an election, primary, or referendum). They must include any supporting evidence with the referral, such as affidavits, written or electronic correspondence, or documented findings from an investigation.

Superior Court

A Superior Court judge may also refer a municipality to the board based on a matter before the court about an alleged election violation by the municipality due to there being a reasonable likelihood of irregularity or impropriety. The judge must include any supporting evidence with the referral, including any record developed during a judicial proceeding.

Municipal Officers and Election Officials

The bill allows a town clerk, registrar of voters, or moderator to refer a municipality to the board if they observe an act or omission in a municipality that may interfere with the timely and orderly administration of required election administration duties. Similarly, a municipality's chief executive officer (CEO) may do this after reviewing the municipality's practices. The municipal official must include any supporting evidence, including affidavits, written or electronic correspondence, procedure manuals and other guidance documents, absentee ballot application logs, moderator's diaries, or other contemporaneously produced notes or records.

State Citizens

A state citizen may file a report with the board for a preliminary review if he or she has a good-faith belief that there is a reasonable likelihood of an irregularity or impropriety in municipal election administration. The citizen must give supporting evidence, including things like affidavits, written or electronic correspondence, or documented findings from an investigation. These submissions must be made under the penalty of false statement. By law, false statement is a class A misdemeanor, punishable by up to 364 days in prison, a fine of up to \$2,000, or both (CGS § 53a-157b).

BOARD REVIEW***Preliminary Review***

After receiving a report from a state citizen, the board must conduct a preliminary review at the next regularly scheduled board meeting and vote on whether to have a review hearing (see below).

In making the determination, the board must consider if the reported municipality would likely be designated for oversight under the bill's provisions if everything in the citizen report is considered accurate based on (1) the report's plausibility from the supporting evidence; (2) the nature and severity of the alleged irregularity or impropriety, including whether it would constitute an election crime or violate the state VRA; and (3) how often these irregularities or improprieties appear

to happen.

The bill specifies that a preliminary review is not considered a contested case under the Uniform Administrative Procedure Act (UAPA).

Review Hearing

Under the bill, when a municipality is referred by one of the above state or municipal entities, or if the board voted to do a review hearing on a citizen report, the board must notify the municipality. The municipality must have the opportunity to submit a written response to the referral or report within 10 days after receiving the notice. (The bill does not require the board to give the municipality any information or evidence on the matter.)

Within (1) 45 days after receiving the municipality's response or (2) 60 days after the board notified the municipality and it received no response, the board must hold a review hearing during a regularly scheduled meeting. At the hearing, the board must present any evidence that accompanied the referral or report. The bill authorizes the board to subpoena to compel (1) any witness to testify and (2) the production or examination of any books or papers the board deems relevant to the matter.

The municipality has the right to respond to this evidence, including rebutting any fact alleged or confronting witnesses. The municipality may be represented by the municipal CEO, corporation counsel, or any other authorized representative.

By the next regularly scheduled meeting, the board must vote on whether to designate a municipality for oversight. In making its decision, the board must consider (1) the municipality's response to the evidence; (2) the nature and severity of the alleged irregularities or improprieties, including if an election crime or a violation of the state's VRA occurred; and (3) how often the irregularities or improprieties appeared to occur.

If oversight is approved, the board must determine the tier of oversight to be applied (see below) and specify its duration. The board's determination is appealable under the UAPA and is privileged for assignment.

SEEC Referral

The bill authorizes the board to refer individuals to SEEC for further proceedings if the board believes, based on matters before it, an individual violated the state's elections laws. The bill correspondingly authorizes SEEC to investigate based on these referrals.

OVERSIGHT TIERS

The bill establishes four tiers of oversight that the board may implement. Low-numbered tiers generally warrant less oversight while high-numbered tiers warrant more.

Tiers I & II

Under the bill, Tier I oversight consists of the following:

1. developing and submitting a plan to mitigate the board's concerns, subject to the board's modifications and approval;
2. mandatory training for election officials in election administration procedures and best practices from (a) the secretary of the state; (b) certified moderators, town clerks, or registrars selected by the secretary; or (c) a combination of them the secretary chooses; and
3. distributing instruction or training manuals or other resources to promote election administration best practices.

Tier II oversight consists of all measures for Tier I, plus regular board contact with the municipality to ensure compliance with the above requirements.

Tier III

Under Tier III oversight, a municipality may be subject to any

interventions authorized under lower oversight tiers. The municipality is also subject to a board-appointed election monitor authorized to do inspections, inquiries, and investigations related to election administration duties and responsibilities performed by municipal officials and their appointees. The bill requires a monitor to immediately report any irregularity or impropriety discovered in these efforts to the secretary. To carry out these duties, it requires that the monitor have access to all records, data, and material maintained or available to the officials or appointees.

Further, the municipality must give the monitor any office space, supplies, equipment, and services needed to perform these responsibilities.

Tier IV

Tier IV oversight consists of complete board administration of any election, primary, or referendum in the municipality and related procedures, regardless of any other provision of the state's municipal or election laws, any special act, or any charter or home rule ordinance.

COMMITTEE ACTION

Government Administration and Elections Committee

Joint Favorable Substitute

Yea 18 Nay 1 (03/11/2026)